

LKRM Terms of Use

Effective Date: 10/01/2025

Last Updated: 10/22/2025

These Terms of Use (the "Terms") govern your access to and use of the LKRM platform, websites, mobile applications, APIs, and related services (collectively, the "Service"). "LKRM," "we," "us," and "our" refer to LKRM, LLC, located at Furman Innovation Lab, 25 Goldsmith St, Greenville, SC 29609. By accessing or using the Service, you agree to be bound by these Terms.

If you are using the Service on behalf of an organization, you represent and warrant that you have authority to bind that organization and that "you" refers to both you and that organization.

1. Eligibility and Account Registration

- You must be at least the age of majority in your jurisdiction to use the Service.
- You should provide accurate, current, and complete information and keep it updated.
- You are responsible for maintaining the confidentiality of your account credentials and for all activities under your account.
- If you suspect unauthorized use of your account, you must notify us promptly at support@lkrmports.com.

2. Acceptable Use

You agree not to, and not to allow third parties to:

- Use the Service for any unlawful purpose or in violation of applicable laws, regulations, or third-party rights.
- Attempt to access accounts or data you are not authorized to access, or probe, scan, or test the vulnerability of any system or network.
- Interfere with or disrupt the integrity or performance of the Service, including by imposing an unreasonable load.
- Upload or transmit viruses, malware, or other harmful code.
- Misrepresent your identity or affiliation, or impersonate another person or entity.
- Reverse engineer, decompile, or attempt to derive source code from the Service except to the extent permitted by law.

3. User Content

- You may submit, upload, or store data, text, images, statistics, notes, and other materials ("User Content").
- You retain ownership of your User Content. You grant LKRM a worldwide, non-exclusive, royalty-free license to host, store, process, transmit, display, and otherwise use your User Content to provide, maintain, secure, and improve the Service, and as otherwise permitted by these Terms.
- You represent and warrant that you have all rights necessary to submit the User Content and that your User Content and use of the Service will not violate any law or third-party rights.

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- We may remove or disable access to any User Content that we reasonably believe violates these Terms or applicable law.

4. Service Plans, Trials, and Fees

- We may offer free, trial, and paid plans. Plan features, limits, and pricing are described at the time of purchase or in your order form.
- If you enroll in a paid plan, you authorize us (and our payment processors) to charge the applicable fees and taxes on a recurring basis until you cancel - unless otherwise noted in a contract or signed agreement.
- Except where prohibited by law or expressly stated otherwise, fees are non-refundable.
- We may change fees or plan features with prior notice, effective on your next billing cycle or as stated in an updated order form.

5. Cancellations and Termination

- You may cancel at any time via your account representative; your access will continue until the end of the current billing period unless stated otherwise.
- We may suspend or terminate your access for: (a) material breach, (b) security risks, (c) non-payment, (d) inappropriate use/violation of terms, or (e) where required by law.
- Upon termination, your right to access the Service ends. We may retain and delete your data as described in our data retention policies and Privacy Policy. Where required by law or by plan terms, we will provide export options.

6. Privacy and Data Protection

- Our processing of personal data is described in our Privacy Policy, which is incorporated by reference. Please review it carefully.
- You are responsible for obtaining all necessary consents from your end users and for providing legally adequate privacy notices where you input or upload personal data into the Service.

7. Security

- We implement reasonable technical and organizational measures to protect the Service and your data. However, no method of transmission or storage is completely secure. You are responsible for configuring and securing your endpoints, accounts, and integrations.

8. Third-Party Services and Integrations

- The Service may interoperate with or rely on third-party products and services (e.g., identity providers, data storage, analytics, payment processors). Your use of those third-party services is governed by their terms, not ours.
- We are not responsible for third-party services and do not warrant their performance or availability.

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9. Beta Features

- We may designate certain features as alpha, beta, preview, or similar ("Beta"). Beta features are provided for evaluation, may be changed or discontinued at any time, and are provided "AS IS" without warranties. Use Beta features at your discretion.

10. Intellectual Property

- LKRM and its licensors own all right, title, and interest in and to the Service, including software, documentation, designs, logos, and trademarks, excluding User Content.
- You may not use our trademarks, branding, or logos without our prior written permission.
- If you provide feedback or suggestions, you grant us a non-exclusive, perpetual, irrevocable, royalty-free license to use them for any lawful purpose.

11. API Terms

- If you access any APIs, you must comply with applicable usage limits, authentication requirements, and documentation. We may monitor API usage and throttle, suspend, or terminate access for misuse or security reasons.

12. Compliance and Export

- You will comply with all applicable laws, including anti-bribery, anti-corruption, sanctions, and export control laws.
- You represent that you are not located in, and will not use the Service from, any embargoed country and are not on any restricted party list.

13. Warranties and Disclaimers

- EXCEPT AS EXPRESSLY PROVIDED IN WRITING, THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. We do not warrant that the Service will be uninterrupted, error-free, or secure.

14. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW:

- LKRM AND ITS AFFILIATES, LICENSORS, AND SUPPLIERS WILL NOT BE LIABLE FOR: (A) INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES; (B) LOSS OF PROFITS, REVENUE, GOODWILL, OR DATA; OR (C) BUSINESS INTERRUPTION, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

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- OUR AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THE SERVICE OR THESE TERMS WILL NOT EXCEED THE AMOUNTS PAID BY YOU TO LKRM FOR THE SERVICE IN THE 12 MONTHS BEFORE THE EVENT GIVING RISE TO LIABILITY (OR \$100 IF YOU ARE ON A FREE PLAN).

Some jurisdictions do not allow the exclusion of certain warranties or limitations of liability; to that extent, those exclusions or limitations may not apply to you.

15. Indemnification

You will defend, indemnify, and hold harmless LKRM and its affiliates, officers, directors, employees, and agents from and against any third-party claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to your: (a) use of the Service; (b) User Content; (c) violation of these Terms; or (d) violation of applicable law or third-party rights.

16. Dispute Resolution; Governing Law; Arbitration

- These Terms and any disputes arising out of or relating to them or the Service are governed by the laws of South Carolina and The United States of America, without regard to conflicts of laws principles.

- Binding Arbitration (US users): Any dispute will be resolved through binding arbitration administered by an arbitration provider of our choosing under its rules, on an individual basis only. CLASS ACTIONS AND JURY TRIALS ARE WAIVED. The seat of arbitration will be Greenville, South Carolina. You may opt out of arbitration within 30 days of first accepting these Terms by emailing support@lkrmsports.com with subject "Arbitration Opt-Out" and your account details.

- If arbitration is not enforceable for a claim, the exclusive jurisdiction and venue will be the state and federal courts located in South Carolina.

17. Changes to the Service and Terms

We may modify the Service and these Terms. If we make material changes, we will provide notice (e.g., by email, in-app notice, or posting). Changes take effect on the stated effective date. Your continued use of the Service after changes become effective constitutes acceptance.

18. Suspension for Improper Usage, Security, or Legal Reasons

We may suspend your access immediately if we reasonably believe it is necessary to address a security risk, protect the Service, its integrity, or other users, or comply with law or a court order.

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19. Data Retention and Portability

We retain User Content as described in our policies and the Privacy Policy. Prior to termination or within a reasonable period after, you may request export of your data where technically feasible.

20. Notices

Notices to you may be provided via email, in-app messages, or within your account interface. Notices to LKRM must be sent to legal@lkrmsports.com and 210 Winding Branch Dr, Summerville, South Carolina 29486, Attn: Legal.

21. Miscellaneous

- Entire Agreement: These Terms, the Privacy Policy, and any order forms constitute the entire agreement and supersede prior agreements.
- Assignment: You may not assign these Terms without our prior written consent. We may assign these Terms in connection with a merger, acquisition, corporate reorganization, or sale of assets.
- Severability: If any provision is unenforceable, the remaining provisions remain in effect.
- Waiver: Failure to enforce a provision is not a waiver.
- Force Majeure: We are not liable for delays or failures due to events beyond our reasonable control.

22. Contact

Questions about these Terms can be sent to support@lkrmsports.com.

Appendix A – Team or Organization Accounts (if applicable)

- The account owner (or contracting entity) controls access to the organization account and associated data.
- Organization administrators can manage roles, permissions, and integrations, and may access, disclose, restrict, or remove data associated with users in the organization account.

Appendix B – Education/Youth Sports Considerations (if applicable)

- If the Service is used in the context of youth teams or educational institutions, you are responsible for obtaining all necessary parental/guardian consents and complying with relevant student and child data privacy guidelines/laws in your jurisdiction.

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